

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: September 17, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Azadzoi vs. Tira 2026-01554017	Demurrer to Complaint <i>Continued to 11/19/26</i>
2	Costa vs. Lardas Systems, Inc. 2026-01571183	Motion to Be Relieved as Counsel of Record <i>Continued to 10/23/26</i>
3	Kiani vs. Masimo Corporation 2024-01426785	Motions to Compel (3) <i>Continued to 11/19/26</i>
4	Lear vs. Electric Car Sales & Service, Inc. 2024-01440975	Motion for Summary Judgment and/or Adjudication Cross-Defendant Walt Disney Parks and Resorts U.S., Inc.'s (WDPR) Motion for Summary Judgment is DENIED. This case arises from the alleged wrongful death of Bonny Lear, a WDPR who suffered a fatal head injury after falling off a golf cart that Electric Car Sales & Services, Inc. (ECSS) delivered to the Disneyland Hotel. As it had done for 20+ years, when WDPR needed to rent a golf cart WDPR would send a purchase order to ECSS with that request. ECSS agrees to the terms and conditions in the purchase order by delivering the requested goods to WDPR. On May 9, 2024, ECSS delivered the golf cart ordered to the Wands warehouse at the Disneyland Resort. At the time of delivery, ECSS's delivery driver, Christian Hernandez, presented the Delivery Ticket to WDPR for signature by Shannon Siegel, who was a Stage Technician at WDPR. Ms. Siegel's duties included receiving and coordinating the delivery of equipment to the Disneyland Resort, and her responsibilities were limited to accepting the delivery of previously ordered goods and notifying the appropriate person or business unit that the item was available for pickup. The Delivery Ticket contains a provision that purports to require WDPR to indemnify ECSS "against any claim, suites [sic] and actions, including negligence and strict liability, whoever [sic] made for losses or injuries related to the Equipment."

	The issue presented by this motion for summary judgment is whether Ms. Siegel had authority to bind WDPR to a contract, i.e., the indemnification provision in the Delivery Ticket. First Cause of Action – Express Indemnification “Express indemnity refers to an obligation that arises by virtue of express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances and is enforced in accordance with the terms of the contracting parties’ agreement.” (<i>C.W. Howe Partners Inc. v. Mooradian</i> (2019) 43 Cal.App.5th 688, 699.) The party seeking to enforce a contract with a corporation has the burden of establishing the contracting officer’s authority to bind the corporation. (<i>Snukal v. Flightways Mfg., Inc.</i> (2000) 23 Cal.4th 754, 779-780 [citing <i>Mariposa Commercial etc. Co. v. Peters</i> (1932) 215 Cal. 134, 141].) “To properly prove a contract claimed to be binding on the corporation, it should be shown that it was made on its behalf by someone who had authority to act for it.” (<i>Ibid.</i>) A corporate employee only “has such authority as the principal, actually or ostensibly, confers upon [them.]” (Civ. Code, § 2315.) ECSS concedes that Ms. Siegel did not have actual authority to bind WDPR by signing the Delivery Ticket. Rather, ECSS argues that Ms. Siegel had ostensible authority. Ostensible Authority “Ostensible authority is such as a principal, intentionally or by want of ordinary care, causes or allows a third person to believe the agent to possess.” (Code Civ. Proc. § 2317) Ostensible authority must be based on the acts or declarations of the principal, not solely upon the agent’s conduct. (<i>Kaplan v. Coldwell Banker Residential Affiliates, Inc.</i> (1997) 59 Cal.App.4th 741, 747.) “[O]stensible authority arises as a result of conduct of the principal which causes the third party reasonably to believe that the agent possesses the authority to act on the principal's behalf. Ostensible authority may be established by proof that the principal approved prior similar acts of the agent. [W]here the principal knows that the agent holds himself out as clothed with certain authority, and remains silent, such conduct on the part of the principal may give rise to liability. (<i>Chicago Title Ins. Co. AMZ Ins. Services, Inc.</i>
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(2010) 188 Cal.App.4th 401 426-427 [internal citations and quotations omitted].)

WDPR argues there is no evidence it made any representation to ECSS regarding Ms. Siegel's authority to bind WDPR to a contract. The only Disney personnel who communicated to it about the Delivery Ticket were Ms. Siegel, Mr. Vanhouten, and Mr. Laurendeau. None of these individuals ever indicated or discussed the authority of Ms. Siegel. Therefore, they could not have led ECSS to believe Ms. Siegel had authority to bind WDPR. The evidence demonstrates that Ms. Siegel was nothing more than a warehouse employee who happened to be there when ECSS dropped off the golf cart and asked for a signature on the Delivery Ticket.

In opposition, ECSS presents evidence of a 20+ year business relationship with WDPR. In that period of time, the routine has been the same: WDPR generates a purchase order for a golf cart rental and ECSS delivers the cart with a Delivery Ticket containing the disputed indemnification clause, signed by an authorized WDPR representative. It is undisputed by WDPR that in the entire time that WDPR and ECSS have been doing business in this manner, WDPR has never commented, questioned, objected, or refused to sign the Delivery Ticket or cancelled a purchase order due to the indemnity language in the Delivery Ticket. (Statement of Additional Disputed Facts, Nos. 37 and 38.) If WDPR objected to the indemnity language, it had ample opportunity prior to May 9, 2024, to notify ECSS of its objections. It did not. Therefore, it was reasonable for ECSS to rely on this course of conduct to believe that the indemnity language was acceptable to WDPR and/or that the WDPR employee who signed for the golf carts had authority to do so.

Moreover, WDPR has submitted no evidence that it ever informed ECSS that certain employees were not authorized to sign the Delivery Ticket or bind WDPR to the indemnity provision contained therein. Thus, when Mr. Hernandez, who has 20+ years in delivering golf carts to WDPR, delivered the subject golf cart to WDPR it was reasonable for him to believe that Ms. Siegel had authority to accept delivery of the cart and to sign the Delivery Ticket on behalf of WDPR. (Fernandez Decl., ¶¶ 4-6.) Ms. Siegel, who presumably is aware of her role within the WDPR organization, never informed Mr. Hernandez that she did not have authority to sign the Delivery Ticket. In fact, her declaration states her "only responsibility as a Stage Technician when it came to the shipment of goods to the Disneyland Resort, including the Wands

	warehouse, was to accept delivery of previously-ordered goods.” (Siegel Decl., ¶ 7.) Such statement undermines WDPR’s argument that Ms. Siegel just happened to be there when the golf cart was delivered. To the contrary, she was the designated personnel to accept the shipment of goods. Based on the foregoing, the Court finds a triable issue of material fact exists as to whether Ms. Siegel had ostensible authority to bind WDPR. Course of Performance A course of performance arises when a contract involves several repeated occasions for performance by either party, the other party has knowledge of the nature of the performance, and the other party has an opportunity to object but fails to do so. (Com. Code § 1303.) A “course of dealing” is a sequence of conduct concerning previous transactions between the parties to a particular transaction that is fairly to be regarded as establishing a common basis of understanding for interpreting their expressions and other conduct. (Com. Code § 1303, subd. (b).) As stated above, WDPR and ECSS have a 20+ year course of dealing. In that period of time, WDPR never commented, questioned, objected, or refused to sign the Delivery Ticket or cancelled a purchase order due to the language in the Delivery Ticket. ECSS has never received any rejection to the Delivery Ticket clause from WDPR. (Hernandez Decl., ¶¶ 4- 6; Navato Decl., ¶¶ 6-7.) There is also no evidence WDPR ever informed ECSS that the receiving employees were not authorized to bind WDPR to any contractual language in the Delivery Ticket. Thus, the course of performance of the parties in this case suggests an acceptance of the indemnification terms. Accordingly, a triable issue of material fact exists as to whether WDPR assented to the indemnification terms in the Delivery Ticket. Workers’ Compensation Under Labor Code section 3864, an employer is not obligated to indemnify a third party who has been found liable to an employee injured as a result of the joint negligence of the employer and the third party, unless there is a written agreement to the contrary executed prior to the injury.
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		In this case, the indemnification provision in the Delivery Ticket was signed prior to the injury to Ms. Lear on June 5, 2024. Therefore, ECSS's claim for indemnification is not necessarily precluded by Section 3864 For all the foregoing reasons, the motion is DENIED as to the first cause of action. Second Cause of Action - Declaratory Relief Because the court finds there are triable issues of fact as to ECSS's claim for indemnification, it cannot grant summary judgment on the declaratory relief claim in favor of WDPS. Accordingly, the motion is DENIED as to the second cause of action. Clerk to give notice.
5	Martin vs. McGillivray 2022-01276636	Motion for Change of Venue (Transfer) Defendants Keri Lynn McGillivray and Jonathan McGillivray's motion to transfer venue and consolidate is DENIED. (See Code Civ. Proc., §§ 403, 404.1; Cal. Rules of Court, rule 3.500.) The McGillivray defendants seek an order transferring a related action pending in San Bernardino Superior Court, <i>Stanford, et al. v. Toyota Motor Corporation, et al.</i>, Case No. CIVSB2218524 (the Stanford action), to the Orange County Superior Court, and consolidating it with the instant action, <i>Martin v. McGillivray, et al.</i>, Orange County Superior Court, Case No. 30-2022-01276636 (the Martin action). The court on its own motion takes judicial notice of the case information for and filings in the Stanford action that are publicly available on the San Bernardino Superior Court's official website. (See Evid. Code, § 452, subds. (d), (h); San Bernardino Superior Court, Court Access Portal, https://sanbernardino.courts.ca.gov/divisions/civil/court-case-information-and-document-sales [using Case No. "CIVSB2218524," as accessed and viewed on 9/11/26].) The court on its own motion also takes judicial notice of the record and charging documents in Keri Lynn McGillivray's (hereinafter, Keri) related criminal cases arising from the same subject accident as the Martin and Stanford actions, specifically: (1) <i>People v. Keri</i>

Lynn McGillivray, Orange County Superior Court, Case No. 22NF0116; and (2) *People v. Keri Lynn McGillivray*, Orange County Superior Court, Case No. 26NF3985. (See Evid. Code, § 452, subd. (d).)

The Martin action. The Martin action was filed on 8/22/22, and has a trial date of 8/9/27. The parties to this action are plaintiff Nicol Martin and the McGillivrays. Martin alleges the McGillivrays negligently caused the subject traffic collision on the SR-241 on 8/23/20, causing Martin serious injuries. (Rabbani Decl. ¶¶ 6-7, 10, Ex. B [Martin complaint].)

The parties have filed two stipulations to continue to trial in the Martin action, pursuant to which trial was continued twice. The first stipulation was filed on 9/8/25, and the second filed on 3/23/26. (ROA Nos. 53, 66.) These stipulations show that the parties have agreed to a stay of the civil proceedings in this action until the resolution of Keri’s related criminal case arising from the subject accident. The stipulations also state the parties have “tentatively resolved” this action “but the settlement funds cannot be allocated until after the related case concludes,” and that the parties therefore “stipulate to a [trial] continuance so that the related matters can resolve and enable this matter to finalize the settlement.” (ROA Nos. 53 [9/8/25 Stip. ¶¶ 2-4, 10], 66 [3/23/26 Stip. ¶¶ 3-7, 9].)

The Stanford action. The Stanford action was filed on 8/23/22, and is currently set for trial on 11/2/26. (See Rabbani Decl. ¶¶ 6, 11, Ex. C; see also Bremont Decl. ¶ 4.) The Stanford action is brought by the Stanford family—i.e., the surviving husband and children of decedent Michelle Eleanor Malahoff Stanford (decedent)—for injuries they sustained in the same subject accident on 8/23/20, including the loss of decedent, who died at the scene. The Stanford complaint names as defendants various Toyota entities, OC Auto Exchange, Costco Wholesale Corporation, American Eagle Wheel Corporation, A.E.W., Inc., and the McGillivrays. It alleges causes of action for strict products liability and negligence against the entity defendants based on defects with the Stanford plaintiffs’ vehicle at the time of the accident (a Toyota Sequoia, which flipped over multiple times). It also alleges a claim for negligence against the McGillivrays for causing the collision and fleeing the scene. (See Rabbani Decl. ¶¶ 3, 6-7, 9, 11, Exs. A [traffic collision report], C [Stanford complaint].)

The publicly available case information for the Stanford action confirms the trial date of 11/2/26, and shows that there are now

	only three remaining defendants, OC Auto Exchange and the McGillivrays. (See San Bernardino Superior Court, Court Access Portal for Case No. CIVSB2218524 [active/inactive parties; dismissals under documents]; see also Bremont Decl. ¶ 5, Exs. A-B.) Importantly, it also shows the McGillivrays have filed a motion to stay the Stanford action pending resolution of Keri’s related criminal proceeding, which is presently scheduled for hearing on 10/2/26. (See San Bernardino Superior Court, Court Access Portal for Case No. CIVSB2218524 [7/1/26, 8/24/26, 8/28/26 filings under documents; hearings].) There is also a substantially similar motion to transfer venue and consolidate pending in that case filed by the McGillivrays, which is also scheduled for hearing on 10/2/26. (See <i>ibid.</i>; see also Ntc. of Mtn., p. 2.) <u>Keri McGillivray’s related criminal cases.</u> The People have filed two related criminal cases against Keri in Orange County Superior Court. The record from the first criminal case (Case No. 22NF0116) shows Keri was charged with four felonies based on the same subject accident at issue in the Martin and Stanford actions, specifically, vehicular manslaughter with gross negligence, fleeing the scene after committing vehicular manslaughter, hit and run resulting in permanent and serious injury, and reckless driving causing injury. The record also shows that trial was scheduled for 5/14/26, but that the People answered not ready (a witness did not/could not appear), and that the court dismissed the case as it did not find good cause to continue the trial. The People subsequently petitioned for writ relief with the Court of Appeal, but it was summarily denied on 7/9/26, and the case was closed on 7/11/26. (See <i>People v. Keri Lynn McGillivray</i>, Orange County Superior Court, Case No. 22NF0116 [minutes from 5/14/26, 5/15/26, 7/9/26, 7/11/26; 7/9/26 Order of Court of Appeal, Case No. G067082].) Subsequently, the People refiled the criminal matter against Keri on 7/29/26, in <i>People v. Keri Lynn McGillivray</i>, Orange County Superior Court, Case No. 26NF3985. The new, refiled criminal case asserts the same four prior felonies arising out of the same subject accident occurring on 8/23/20. (See <i>People v. Keri Lynn McGillivray</i>, Orange County Superior Court, Case No. 26NF3985 [7/29/26 criminal complaint].) The new criminal case remains pending and is still in its initial stages; the arraignment hearing is currently scheduled for 9/17/26.
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		<u>Procedural requirements.</u> Defendants have adequately demonstrated a good faith effort to obtain the agreement of all parties to the proposed transfer and consolidation, and notified all parties of the substantially similar motion to transfer and consolidate pending in the Stanford action. (See Cal. Rules of Court, rule 3.500(b), (c)(2)-(3).) <u>The civil actions are not “complex.”</u> Defendants have also shown the Martin and Stanford actions are not “complex” as defined by the Judicial Council. (See Code Civ. Proc., § 403; Cal. Rules of Court, rules 3.400, 3.500(c)(1).) As plaintiff Martin concedes, the Martin action “is a straightforward motor vehicle negligence” case between Martin and the McGillivrays. (Opp. at p. 2; see Rabbani Decl. at Ex. B [Martin complaint].) There is nothing “complex” about a straightforward personal injury action arising out of a traffic collision between a single plaintiff in one car and two individual defendants in another. (See Cal. Rules of Court, rule 3.400(a)-(c).) The Stanford action is also not complex. There are only three plaintiffs and three defendants remaining in that case. All three Stanford plaintiffs are aligned in interest and were injured in the same vehicle in the same subject accident. As alleged against the sole remaining entity defendant, the plaintiffs allege claims for products liability based on a single vehicle’s alleged defects. And as alleged against the McGillivrays, the plaintiffs’ negligence claim is not much different from Martin’s claims in this action. (See Rabbani Decl. at Ex. C [Stanford complaint].) None of the issues in that action are difficult or novel, and nothing suggests the case will require exceptional judicial management or substantial postjudgment supervision. (See Cal. Rules of Court, rule 3.400(a)-(c).) <u>Common question of fact or law and other substantive factors.</u> Defendants have shown that there is a common question of fact or law that is predominating and significant to the litigation: liability for the accident, i.e., whether Keri caused the collision(s) that injured Martin and the Stanfords. (See Rabbani Decl. ¶¶ 7-9, Exs. A-C.) Defendants have shown that this liability issue is common to both cases and shares the same percipient and investigative witnesses. (See <i>ibid.</i>) Defendants have not, however, addressed the remaining factors, including “the relative development of the actions” or the “likelihood of settlement of the actions without further litigation should [consolidation] be denied.” (Code Civ. Proc., § 401.1.) This
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is despite the fact that defendants have long since “tentatively resolved” the Martin action and have merely been awaiting the resolution of the related matters to finalize the settlement, strongly suggesting liability may no longer even be an issue in this action. (See ROA Nos. 53 [9/8/25 Stip. ¶¶ 3-4, 10], 66 [3/23/26 Stip. ¶¶ 3-7, 9].) This is also despite the fact that at the time defendants filed this motion, the Stanford action was set for trial on 9/28/26, meaning that the discovery cutoff in that action may have already passed, along with the ability to avoid any further purported “duplicative discovery” by consolidating the two matters.

Defendants have also failed to address the fact that on the very same day they filed this motion to transfer venue and consolidate, they also filed a motion to stay the Stanford action pending resolution of Keri’s related criminal proceedings. This is significant because if the San Bernardino Superior Court grants the stay, both cases will be stayed pending the outcome in the criminal matter (see ROA Nos. 53 [9/8/25 Stip. ¶ 2, Martin action stayed per agreement], 66 [3/23/26 Stip. ¶¶ 4-5]), which has the very real possibility of finally determining the liability issue against Keri in the civil actions by operation of law (collateral estoppel). (See, e.g., *Smith v. State Farm Mut. Auto. Ins. Co.* (1992) 5 Cal.App.4th 1104, 1115 [criminal conviction is given collateral estoppel effect, conclusively establishing the defendant’s liability for negligence in a civil action arising from the same incident between the parties].) This would answer the only common question of fact or law between the two civil actions, absolving any grounds for consolidation.

California Rules of Court, rule 3.500 requires that “if the court orders that the case or cases be transferred from another court, the order must specify the reasons supporting a finding that the transfer will promote the ends of justice, with reference to the [foregoing] standards....” (Cal. Rules of Court, rule 3.500(d); Code Civ. Proc., § 404.1.) The court cannot do this here because defendants have failed to provide and address all the information necessary for the court to properly consider and evaluate these factors, particularly in light of the long-pending tentative settlement of the Martin action and the pending motion for stay in the Stanford action that is currently scheduled for hearing on 10/2/26.

Accordingly, the motion is denied, without prejudice to a later motion to transfer and consolidate providing further information once the San Bernardino Superior Court has ruled on the motion for stay.

		Defendants shall give notice.
6	Pavement Recycling Systems, Inc. vs. State of California, Department of Transportation 2026-01562211	Demurrer to Complaint <i>Case dismissed. All hearings vacated.</i>
7	Serhal vs. Homesite Insurance Company of the Midwest 2026-01570046	Demurrer to Complaint <i>Hearing vacated pursuant to request.</i>
8	Sun vs. 1560 E. Warner Avenue Limited Partnership 2025-01516329	Demurrer to Amended Complaint Defendants 1560 E. Warner Avenue Limited Partnership; a California limited partnership and Andrew Pan, Julia Zhu, and John Ho's demurrer to the First Amended Complaint of Hai Sun is OVERRULED in part and SUSTAINED in part as follows: • OVERRULED as to the 1st cause of action for breach of written contract. • OVERRULED as to the 2nd cause of action for breach of implied covenant of good faith and fair dealing. • OVERRULED as to the 3rd cause of action for breach of fiduciary duty. • OVERRULED as to the 4th cause of action for accounting. • SUSTAINED as to the 6th cause of action for constructive fraud. The claim is not alleged with the required specificity. • SUSTAINED as to the 7th cause of action for declaratory relief. The requested relief is wholly derivative of other claims. Where the declaratory relief claim merely restates the same controversy as the other claims and would not independently resolve any dispute, it does not serve the

	purpose of the declaratory relief statute. <i>Siskiyou Hospital, Inc. v. County of Siskiyou</i> (2025) 109 Cal.App.5th 14. • OVERRULED as to the 9th cause of action for Judicial dissolution. Motion to Strike Portions of Complaint The motion to strike is DENIED as moot as to paragraph 26 of the 6th cause of action as the court has sustained the demurrer to this cause of action. As to prayer no. 7, “For punitive damages on the non-contract claims against the individual Defendants where authorized by Civil Code section 3294” the motion to strike is GRANTED. Civil Code section 3294 authorizes punitive damages only in an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. This statute thus establishes two threshold requirements: (1) the underlying claim must be non-contractual, and (2) the complaint must allege facts supporting oppression, fraud, or malice. Here, there are no claims asserted that allege facts showing oppression, fraud or malice. As to Prayer No. 9 of Plaintiffs’ First Amended Complaint, specifically, “For reasonable attorneys’ fees and costs where permitted by contract, statute, or equity” the motion is DENIED. A trial court is not required to strike a prayer for attorney fees at the pleading stage simply because the complaint does not yet fully establish the legal basis for such fees. In <i>Camenisch v. Superior Court</i>, (1996) 44 Cal.App.4th 1689, the Court of Appeal held that the trial court was not required to strike a prayer for attorney fees where the complaint did not allege a contract allowing recovery of attorney fees by the prevailing party, because the court was not required to strike the prayer before the plaintiff had a full opportunity to determine, through discovery, whether a basis for recovery exists. This principle reflects the broader rule that motions to strike are disfavored where the challenged matter may become relevant as the case develops. Plaintiff Sun is granted ten days leave to amend. Defendant 1560 E. Warner Avenue Limited Partnership to give notice.
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9	Titanium Coating Services, Inc. vs. Capital Asset Exchange and Trading, LLC 2026-01573519	Demurrer to Complaint <i>Continued to 10/22/26</i>
10	Western Mandarin Immersion Charter School vs. Irvine Unified School District 2026-01574037	Petition for Writ <i>Case dismissed. All hearings vacated.</i>